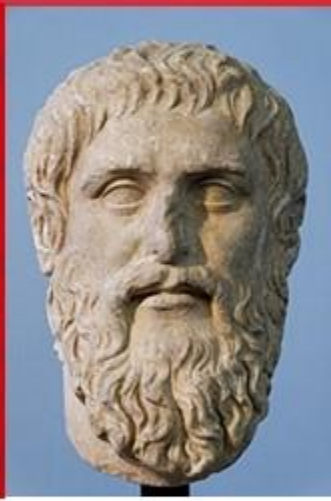
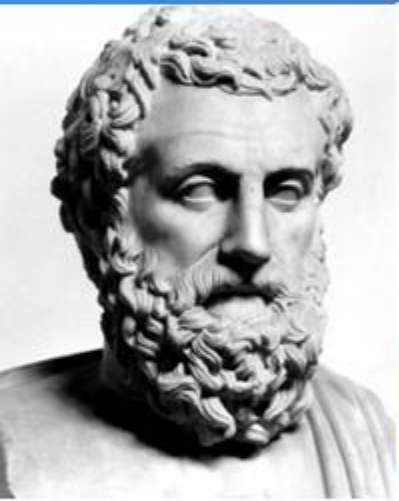


ETHICS, INTEGRITY & APTITUDE



MODULE – 36

CORRUPTION-2

WAYS TO REDUCE CORRUPTION

Multi-dimensional reforms to be implemented simultaneously to tackle menace of corruption.

- Political reforms
- Electoral reforms
- Economic reforms (3rd generation)
- Civil services reforms
- Judicial reforms
- Police reforms
- Financial sector reforms
- Reforms in functioning of regulatory authorities
- Structural reforms
- Procedural reforms
- Behavioural reforms

- 1 Specific reforms in RTI, Public service delivery, E-Governance, Citizen charters, Social audits, Changes to RPA 1951, Parliamentary reforms like Codification of privileges of members of parliament, Changes to anti-defection laws, Outcome budgets, shift towards accrual based accounting system in place of cash based accounting systems, Reforms in PPP by transforming PPP into Public-Private-People – Panchayat partnerships.



WAYS TO REDUCE CORRUPTION

- 2 Decentralization of power to lowest levels by implementing 73rd & 74th amendments in both letter and spirit.
- 3 Amendment to Prevention of Corruption Act, 1980 to protect honest civil servants and also punish corrupt ones.
- 4 Ensuring effective functioning of Lokpal and Lokayukta to prevent political corruption.
- 5 Sensitivity training to bureaucracy to change their attitudes and behaviours.
- 6 Changing political attitudes of people by creating awareness among them about their rights.
- 7 Transforming representative democracy into participative democracy with the help of good governance.



PREVENTION OF CORRUPTION ACT
(PCA) - RECOMMENDATIONS

The following offences should be classified as offense under the PCA:

- 1 Gross perversion of the Constitution and democratic institutions amounting to wilful violation of oath of office.
- 2 Abuse of authority unduly favouring or harming someone.
- 3 Obstruction of justice
- 4 Squandering public money.

Types of
CorruptionCollusive
CorruptionCompelled
Corruption

COLLUSIVE BRIBERY –
RECOMMENDATIONS

- 1
 - Collusive Bribery should be included as a separate offence under Prevention of Corruption Act.
 - By collusive bribery it is meant that both bribe-giver and bribe-taker collude to cause extraordinary loss to public exchequer.
- 2 The punishments for all such cases of collusive bribery should be double that of other cases of bribery.



ETHICS, INTEGRITY & APTITUDE

WAYS TO REDUCE CORRUPTION

2ND ARC - LEGAL FRAMEWORK FOR FIGHTING CORRUPTION

SANCTION FOR PROSECUTION – RECOMMENDATIONS

- 1** Prior sanction should not be necessary for prosecuting a public servant who has been trapped red-handed or in cases of processing assets disproportionate to the known sources of income.
- 2** PCA should be amended to ensure that sanctioning authority is not summoned and instead the documents be obtained and produced before the courts by the appropriate authority.
- 3** Presiding Officer of a House of Legislature should be designated as the sanctioning authority for MLAs and MPs respectively.
- 4** The requirement of prior sanction for prosecution now applicable to serving public servants should also apply to retired public servants for acts performed while in service.



2ND
ARC
REPORTS

LIABILITY OF CORRUPT PUBLIC
SERVANTS TO PAY DAMAGES –
RECOMMENDATION

- 1 Public servants who cause **loss to state or citizens** by their **acts** should be made **liable** to make good, the loss caused and in addition, be made **liable for damages**.



SPEEDING UP TRIALS UNDER PCA

- 1 Causes for delay in the trial of cases under PCA
 - Tendency of the accused to seek **adjournments** on one plea or the other
 - Tendency of the accused to **challenge** every order of the trial court in High Court and then in Supreme Court and seek stay on further proceedings.



SPEEDING UP TRIALS UNDER PCA

- 2** In order to ensure the speedy trial of corruption cases, PCA has made the following provisions:
- All cases to be tried only by a **special Judge**.
 - The proceedings of the court should be held on day-to-day basis.
 - No court shall stay the proceedings under the Act **on the grounds of any error or irregularity** in the sanction granted, unless in the opinion of the court it has led to failure of justice.

RECOMMENDATION

- 1** **Time limits** for various stages of trial for corruption related offense be laid down.
- 2** **Special Judge** should be allowed to hear other cases only if there are no cases under PCA pending before him/her.
- 3** Proceedings to be conducted on **day-to-day basis**
- 4** SC and HC may direct for **precluding unwarranted adjournments** for offences under PCA

2ND ARC - LEGAL FRAMEWORK FOR FIGHTING
CORRUPTIONSERIOUS ECONOMIC OFFENCES
– RECOMMENDATIONS.

- 1 A new Law on **Serious Economic Offences** should be enacted
- 2 A **Serious Frauds Office (SFO)** to be set up and attached to the Cabinet Secretariat, to investigate and prosecute such offence.
- 3 A **Serious Frauds Monitoring Committee** should be constituted to oversee the investigation and prosecution of such offences.

- 4 In all cases of serious frauds, the Court shall presume the **existence of means rea of the accused**, and the burden of proof regarding its non-existence, shall lie on the accused.

IMMUNITY ENJOYED BY
LEGISLATORS – RECOMMENDATION

- 1 Immunity enjoyed by the **MPs** does not cover **corrupt acts** committed by them in connection with their **duties in the House** or otherwise.



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